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Landmark bill banning some dyes in food served in California schools passes

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A landmark bill to ban some dyes in food served at California public schools, aimed at protecting children's health, is headed to Gov. Gavin Newsom's desk to be signed into law after passing the state legislature on Thursday.

Assembly Bill 2316, also known as the California School Food Safety Act, would prohibit six potentially harmful food dye chemicals from being provided in the state's public schools. It was approved by the California Assembly on Thursday after passing the state Senate earlier in the week.

"California has a responsibility to protect our students from chemicals that harm children and that can interfere with their ability to learn," Assemblymember Jesse Gabriel, who introduced the legislation back in February, said in a statement Thursday, adding, "This bill will empower schools to better protect the health and well-being of our kids and encourage manufacturers to stop using these harmful additives."

Gabriel was previously successful in his efforts to ban potentially harmful food and drink additives in products sold throughout the state through the passage of the California Food Safety Act last year. The legislation bans potassium bromate, propylparaben, brominated vegetable oil and Red 3 from food that is manufactured, delivered and sold in the Golden State.

Newsom signed the bill into law last October, making California the first state in the U.S. to ban the additives.

Under the newly passed California School Food Safety Act, Red Dye No. 40, Yellow Dye No. 5, Yellow Dye No. 6, Blue Dye No. 1, Blue Dye No. 2 and Green Dye No. 3 will be banned from food served to students in public schools during regular hours.

The bipartisan bill was supported by the Environmental Working Group and Consumer Reports.

Studies suggest that consumption of the six dyes and colorants banned under A.B. 2316 may be linked to hyperactivity and other neurobehavioral problems in some children, as the California Environmental Protection Agency's Office of Environmental Health Hazard Assessment outlined in a 2021 report.

While there are still thousands of chemicals allowed for use in our country's commercial food system, many of those that have been reviewed by the Food and Drug Administration have not been reevaluated for decades. Red 40, for example, was last evaluated for health risks in 1971.

Reports from the American Academy of Pediatrics align with this push to reassess the safety of artificial food coloring.

"Over the last several decades, studies have raised concerns regarding the effect of [artificial food colorings] on child behavior and their role in exacerbating attention-deficit/hyperactivity disorder symptoms," doctors write. "Further work is needed to better understand the implications of AFC exposure and resolve the uncertainties across the scientific evidence. The available literature should be interpreted with caution because of the absence of information about the ingredients for a number of reasons, including patent protection."

Dr. Stephanie Widmer, an ABC News medical contributor, board-certified emergency medicine physician and toxicologist, told "Good Morning America" previously, while discussing California's earlier harmful chemical ban, "These chemicals are all kind of in different foods and all exert different effects and different concerns."

"Some of them are associated with neurological problems, some are reproductive problems, some have been linked to cancer," Widmer said at the time. "It really depends on the substance."

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